

Superior Court of Washington, County of _____

In the Guardianship of:

Respondent/s (*minors/children*)

Case Number: _____

**Declaration Explaining the Reasons for
Minor Guardianship Petition**
(Clerk Code: DCLR)

**Declaration Explaining the Reasons for
Minor Guardianship**

Use this form to explain the reasons why you asked for Minor Guardianship, why the court should appoint the person you propose as guardian, and (if applicable) why the parents' contact, decision-making, or access to records should be limited. Use this form together with:

- Minor Guardianship Petition (form GDN M 102)
- Standby Minor Guardianship Petition (form GDN M 702)

Important! If the children are age 12 or older, this form **must** be served on them unless you get a court order to withhold. If you believe it might be harmful for the children to read about the reasons, use these forms to ask the court for permission **not** to serve the children.

- Motion to Withhold Certain Documents from the Minor (form GDN M 106)
- Order on Motion to Withhold Certain Documents from the Minor (form GDN M 107)

1. Why do the children need a guardian?

Parent 1 (Name): _____:

- ☐ consented, after being fully informed of the nature and consequences of guardianship.
- ☐ had their parental rights terminated.
- ☐ is **not** willing or able to provide for the support, care, education, health, safety, and welfare of a child under age 18 (exercise the parenting functions in RCW 26.09.004). This is true because (*explain and give examples*):

Parent 2 (Name):_____:

- ☐ consented, after being fully informed of the nature and consequences of guardianship.
- ☐ had their parental rights terminated.
- ☐ is **not** willing or able to provide for the support, care, education, health, safety, and welfare of a child under age 18 (exercise the parenting functions in RCW 26.09.004). This is true because (*explain and give examples*):

2. Children's best interests

It is in the best interests of the children to appoint a guardian because (*explain how having a guardian would be good for the children*):

3. Why the person I propose should be guardian

(Name/s of proposed guardian/s): _____
should be appointed guardian because *(explain why this person is the best choice)*:

4. Should parent/s contact, decision-making, or access to records be limited?

☐ No.

☐ Yes *(check all that apply)*:

☐ Mandatory limiting factors from RCW 26.09.191. A parent has one or more of these problems, as follows *(check all that apply)*:

☐ **Abandonment** – (Parent's name): _____
intentionally abandoned a child in this case for an extended time.

☐ **Child Abuse** – (Parent's name): _____
(or someone living in that parent's home) abused or threatened to abuse a child. The abuse was *(check all that apply)*:
☐ physical ☐ repeated emotional abuse.

☐ **Domestic Violence** – (Parent's name): _____
(or someone living in that parent's home) has a history of domestic violence as defined in RCW 7.105.010.

☐ **Assault** – (Parent's name): _____
(or someone living in that parent's home) has assaulted someone causing grievous physical harm or causing fear of such harm, or sexually assaulted someone.

☐ **Sex Offense or sexual abuse of a child** by a parent or a person living with a parent.

<i>You may use Attachment B to the Parenting Plan, FL All Family 140, to address sex offense or sexual abuse of a child and related restrictions.</i>

[] Other limiting factors from RCW 26.09.191 – A parent has one or more of these problems as follows (*check all that apply*):

[] **Neglect** – (*Parent's name*): _____
neglected their parental duties towards a child in this case.

[] **Emotional or physical problem** – (*Parent's name*): _____
has a long-term emotional or physical problem that interferes with their performance of parenting functions.

[] **Substance Abuse** – (*Parent's name*): _____
has a long-term problem with drugs, alcohol, or other substances that interferes with their performance of parenting functions.

[] **Lack of emotional ties** – (*Parent's name*): _____
has few or no emotional ties with a child in this case.

[] **Abusive use of conflict** – (*Parent's name*): _____ has
engaged in ongoing and deliberate actions to misuse conflict.

[] **Withholding the child** – (*Parent's name*): _____
has kept the other parent away from a child in this case for a long time, without a good reason. Withholding does not include protective actions taken by a parent in good faith for the legitimate and lawful purpose of protecting themselves or the parent's child from the risk of harm posed by the other parent.

[] **Other** (*specify*): _____

Explain and give examples for each limiting factor, if not already covered above:

Petitioner fills out below:

I declare under penalty of perjury under the laws of the State of Washington that the facts I have provided on this form (and any attachments) are true. [] I have attached (*number*): _____ pages.

Signed at (*city and state*): _____ Date: _____



Petitioner signs here

Print name

Co-Petitioner (if any) fills out below:

I declare under penalty of perjury under the laws of the State of Washington that the facts I have provided on this form are true.

Signed at (*city and state*): _____ Date: _____



Co-Petitioner signs here

Print name

Warning! Documents filed with the court are available for anyone to see unless they are sealed. Financial, medical, and confidential reports, as described in General Rule 22, **must** be sealed so they can only be seen by the court, the other party, and the lawyers in your case. Seal those documents by filing them separately, using a *Sealed Cover Sheet* (form GDN ALL 001). You may ask for an order to seal other documents.